Appendix G
(Clause D22 of *additional conditions of contract*)

Form of Joint Venture Guarantee

THE GOVERNMENT OF
THE HONG KONG SPECIAL ADMINISTRATIVE REGION

Contract No.: HY/2022/14
Modification Works of Noise Barriers
along Yuen Long Highway near Park Signature

THIS GUARANTEE is made the [ ] day of [ ] [ ]

BETWEEN:

(1) The Government of the Hong Kong Special Administrative Region (together with its successors and assigns, hereinafter called "the *Client*"); and

(2) [ ] whose registered office is at [ ] and [ ] whose registered office is at [ ] and ..... (hereinafter collectively called "the Guarantors").

WHEREAS

(A) By a contract between the *Client* and [ ] (hereinafter called "the *Contractor*") dated [ ] (hereinafter called "the contract"), the *Client* and the *Contractor* undertook certain obligations towards each other in relation to the execution and completion of certain *works* ("the *works*") upon the terms and conditions contained in the contract.

(B) Pursuant to the terms of the contract, the *Contractor* agreed to procure the provision of a guarantee in the terms hereof.

(C) The Guarantors are shareholders of the *Contractor* and at the request of the *Contractor* have agreed to guarantee jointly and severally the due performance of the contract by the *Contractor* in the manner hereinafter appearing.

IT IS HEREBY AGREED AS FOLLOWS

1. In consideration of the *Client* entering into the contract with the *Contractor*, the Guarantors hereby irrevocably and unconditionally guarantee to the *Client* as a primary obligation and not as a surety punctual true and faithful performance and observance by the *Contractor* of the obligations, terms, conditions and liabilities to be performed, observed and assumed by the *Contractor* under the provisions of the contract and of any further agreement entered into between the *Client* and the *Contractor* in connection with the contract and in furtherance of this guarantee irrevocably and unconditionally undertake and guarantee that on demand by the *Client* the Guarantors shall perform, observe and assume those obligations, terms, conditions and liabilities.

2. The Guarantors irrevocably and unconditionally indemnify the *Client* against all losses, damages, costs and expenses suffered or incurred by the *Client* arising by reason of any act, default or omission on the part of the *Contractor* in the performance, observance and assumption of the *Contractor's* obligations, terms, conditions and liabilities under the provisions of the contract and of any further agreement entered into between the *Client* and the *Contractor* in connection with the contract.

3. The Guarantors irrevocably and unconditionally indemnify the *Client* against all losses, damages, costs and expenses suffered or incurred by the *Client* arising by reason of any act, default or omission on the part of the Guarantors in the performance and observance of their obligations hereunder.

4. This Guarantee and the Guarantors' obligations hereunder shall remain in full force and effect and shall not be affected or discharged by:-

   4.1 any alteration (whether or not made with the Guarantors' consent) to the terms of the contract made by agreement between the *Client* and the *Contractor* in the extent or nature of the *works* or services to be carried out thereunder;

   4.2 any suspension of the *works* or delay to the *completion date* being given to the *Contractor* or by any other indulgence or concession to the *Contractor* or by any forbearance, forgiveness or any other thing done, omitted or neglected to be done under the contract;

   4.3 any other bond, security or guarantee now or hereafter held by the *Client* for all or any part of the obligations of the *Contractor* under the contract or any release or waiver thereof;

   4.4 the voluntary or involuntary liquidation, bankruptcy, dissolution, sale of assets, receivership, general assignment for benefit of creditors, insolvency, reorganisation, arrangement, compensation or other proceedings of or affecting the *Contractor* or its assets, or any change in the constitution or shareholdings of the *Contractor*;

   4.5 any assignment by the *Contractor* of any or all of the obligations, terms and conditions to be performed and observed under the contract whether or not any such assignment has been consented to; and

   4.6 without prejudice to the generality of the foregoing any fact or event (whether similar to any of the foregoing or not) which in the absence of this provision can, would or might constitute or afford a legal or equitable discharge or release of or defence to a guarantor, other than the express written release by the *Client* of the Guarantors' obligations.

5. The Guarantors shall not on any ground whatsoever claim or recover by the institution of proceedings or the threat of proceedings or otherwise or claim any set-off or counterclaim against the *Contractor* or prove in competition with the *Client* for the recovery of any payment by the Guarantors hereunder or be entitled in competition with the *Client* to claim or have the benefit of any security which the *Client* holds or may hold for any money or liabilities due or incurred by the *Contractor* to the *Client* and in case the Guarantors receive any sums from the *Contractor* in respect of any payment by the Guarantors hereunder the Guarantors shall hold such monies in trust for the *Client* so long as any sums are payable (contingently or otherwise) hereunder.

6. The Guarantors shall not be released from liability under this Guarantee by reason of the unenforceability, invalidity or termination of the contract for any reason whatsoever.

7. The Guarantors hereby represent that, with respect to their obligations, liabilities or any other matter under or arising out of or in connection with this Guarantee, neither they nor any of their properties or assets have, in the Hong Kong Special Administrative Region, or in any other jurisdiction, any right of immunity on the grounds of sovereignty or otherwise from any legal action, suit or proceedings; from the giving of relief in any legal action, suit or proceedings; from set-off or counterclaim; from the jurisdiction of any court, in the Hong Kong Special Administrative Region or in any other jurisdiction; from service of process upon them or any agent; from attachment prior to judgment or from execution or any other process for the enforcement of any judgment or other legal process in any jurisdiction; and to the extent that the Guarantors are or become entitled to any immunity as aforesaid, in the Hong Kong Special Administrative Region or in any other jurisdiction in respect of their obligations, liabilities or any other matter under or arising out of or in connection with this Guarantee, they do hereby and will irrevocably and unconditionally waive and agree not to plead or claim any such immunity. The Guarantors further consent to the giving of any relief in any legal action, suit or proceeding and to execution or any other form of process for the enforcement of any judgment against them or their assets.

8. The Guarantors shall be jointly and severally liable for their obligations under this Guarantee and all reference to the Guarantors shall take effect as references to all the Guarantors or any of them.

9. This Guarantee shall be governed by and interpreted in all respects according to the laws for the time being in force in the Hong Kong Special Administrative Region and the Guarantors hereby agree to submit to the non-exclusive jurisdiction of the courts of the Hong Kong Special Administrative Region and irrevocably appoint the *Contractor* to act as their duly appointed agent for acceptance of the service of process.

IN WITNESS WHEREOF this Guarantee has been executed as a deed by the Guarantors on the date first above written.

(a) *Alternative A (with Common Seal)*[1]

Executed and delivered)
as a deed and the COMMON SEAL)
of [name of *Contractor*])
was affixed in the presence of)
[ ] its [director(s) or)
director and secretary or person(s) authorized to)
sign the contract by its board of directors][2])
in the presence of a witness:)
)
……..)
[Name])
[Occupation])
[Address])

[Signature of the director(s) etc][1]

Common Seal

Alternative B (without a Common seal)[1]

Executed and delivered)
as a deed)
by [name of *Contractor*])
acting through)
[ ] (its sole director))
or)
[ ] and [ ] (its directors))
or)
[ ] (its director) and)
[ ] (its company secretary)[2])
in the presence of a witness:)
)
……..)
[Name])
[Occupation])
[Address])

[Signature of the director(s) etc][1]

(b) *SIGNED, SEALED AND DELIVERED by*)
[name of *Contractor*] by [ ])
his/her/its[3] attorney under power of attorney)
dated [ ])
)
in the presence of :)
)
……..)
[Name])
[Occupation])
[Address])

[Signature of the attorney][1]

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Note: (a) For use where executed by company incorporated in Hong Kong.
(b) For use where executed by under power of attorney.

[1] The italic parts are not part of the execution clause. They are for guidance or information only.
[2] Select the correct expression for use. If none is applicable, insert an appropriate expression.
[3] Delete whichever is inappropriate.